

STEPS TOWARDS R&R POLICY

1985 Committee headed by the then SC and ST commissioner B.D. Sharma formulates a rehabilitation policy for displaced tribals.

1993 Rural Development Ministry prepares a draft.

1994 Rural Development Ministry revises the same.

1995 Alternative policy prepared by 1,500 activists is presented to rural development secretary.

1997 Committee of secretaries approves new draft which takes displacement without prior consent of those displaced for granted.

1999 Talks between rural development minister and social activists end as the BJP government loses trust vote in Parliament.

2003 NDA government brings out R&R policy for project-affected families.

2004 Policy is notified in early February.

2005 NAC brings out fresh draft policy in December.

2006 Rural development minister presents revised R&R policy.

2007 Union Cabinet approves new R&R policy.

Current status Bill with Standing Committee of Parliament for past 6 months.

too was proposed there is no sight of the R&R package despite nearly three years of debate since December 2005.

The cost of delay could be colossal, warns Amit Mitra, noted economist and secretary-general of FICCI. "Just Bengal could lose Rs 1,93,000 crore investments spread over 64 projects which are in the pipeline, including Jindal's steel plant. Moreover, there are 38 SEZs with investments of Rs 40,000 crore. How will these be implemented if industry starts walking out," says Mitra.

Union Rural Development Minister Raghuvansh Prasad Singh is keen on getting the proposed Land Acquisition (Amendment) Bill, 2007, and the Rehabilitation and Resettlement Bill, 2007, through the House in the forthcoming October session if it happens. The anxiety is not surprising, given that an overhaul of the Land Acquisition Act had be-

through a social impact assessment which will take into account the impact that the project will have on public property, assets and infrastructure. The policy also raises the premium over price to be paid to farmers from 30 per cent to 60 per cent of the market value. All payments will be made before transfer of ownership as part of the new policy's focus on rehabilitation before displacement.

The new policy clears the air on acquisition of land for public purposes. The projects related to strategic naval, military, or air force as well as those related to infrastructure like electricity, roads, airports, rail, mining and water supply will be treated as public purpose. India Inc would have to buy 70 per cent of the total required land directly from farmers. The Government would step in to buy the rest 30 per cent only if the owners refuse to yield.

To stop companies from acquiring land far

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OUTRAGE: Farmers protesting in Noida

come a prestige issue for the UPA whose policies were largely seen as driving SEZs with their huge demands for land. The Government has hence taken extra efforts to finalise the policy, referring the final draft to a Group of Ministers followed by discussions with environmentalists like Medha Patkar. It then sent the bill to the Parliamentary Standing Committee headed by former Uttar Pradesh chief minister Kalyan Singh in December 2007 to get the views of a wide cross section of experts and political leaders comprising the panel. "The committee has met 14 times to minutely examine each and every aspect of the bill. We are ushering in the most radical and sweeping changes which answer many of the concerns that the earlier law failed to address," says Kalyan.

A sneak preview of UPA's new deal for farmers by both Kalyan and Raghuvansh shows a shift from a pro-acquirer to a pro-farmer policy. For starters, all projects will have to go

in excess of what they need, the bill makes it compulsory for corporates to submit a plan and layout of the facility before acquiring land. For instance, while Maruti Udyog is situated in a total land area of 300 acre and has an installed capacity of 3.5 lakh cars a year, the Tata small car project has 997 acre for producing 1 lakh cars to be expanded to over 3 lakh cars. Beneficiaries of compensation will now include land holders, tenants, agricultural and non-agricultural labourers and rural artisans who have been living in the affected areas for over five years preceding the acquisition.

Trouble is much of the good intent is locked in lethargic government response. There is no doubt that India's transition to an industrial power will require flexible acquisition policy but the stakeholders have to carry the people along with them on the road to progress. Clearly, as the prime minister often says, it is an idea whose time has come. ■